

PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR JULY 10, 2026 AT 8:30 A.M.

13. S-CV-0051579 CARTER, WILLIAM v. SHAHI, KAVIAN

Defendant Sutter Roseville Medical Center's Motion to Dismiss Action

Defendant Kavian Shahi's Joinder to the Motion

The court acknowledges defendant's joinder to the pending motion and request for affirmative relief.

Ruling on Motion

Defendant's current motion seeks dismissal based upon plaintiffs' failure to comply with the court's prior discovery orders. Put another way, defendant seeks an order for terminating sanctions against plaintiffs in which defendant Kavian Shahi joins.

Terminating sanctions may be imposed to either (1) strike the entirety or a part of a pleading; (2) stay the proceedings until the party obeys a discovery order; (3) dismiss all or part of an action; or (4) render the entry of a default judgment. (Code of Civil Procedure section 2023.030(d).) The court also has inherent authority to impose terminating sanctions based upon discovery abuses. (*Department of Forestry & Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 197, disapproved on other grounds in *Presbyterian Camp and Conference Centers, Inc. v. Superior Court* (2021) 12 Cal.5th 493.) The issuance of terminating sanctions, however, is an extreme remedy. The dismissal of an action is a drastic sanction that is only applied after a party has had an opportunity to comply with a court order yet still fails to do so. (see *Ruvalcaba v. Government Employees Ins. Co.* (1990) 222 Cal.App.3d 1579, 1581.) The totality of the circumstances surrounding the discovery violations are considered when ordering terminating sanctions: (1) whether the party's conduct was willful; (2) the detriment to the propounding party; and (3) the number of formal and informal attempts to obtain discovery. (*Los Defensores, Inc. v. Gomez* (2014) 223 Cal.App.4th 377, 390.)

In this instance, plaintiffs have failed to comply with the court's prior discovery order entered on March 24, 2026. The circumstances in this case, however, are such that plaintiffs' prior counsel - and father - was ill and ultimately passed away sometime in 2025. To reiterate, the purpose of discovery sanctions is to prevent abuse of the discovery process and correct problems presented. (*Do v. Superior Court* (2003) 109 Cal.App.4th 1210, 1213-1214.) It is not a weapon to provide for punishment, forfeiture, or avoid of trial on the merits. (*Ibid.*) Considering the totality of the circumstances and on balance, the issuance of terminating sanctions at this juncture is too extreme a sanction. Nonetheless, the court advises plaintiffs that the continued